THE STATE

versus

ZEPHANIAH MATIWAZA

AND

BLESSING DUBE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 4 & 5 NOVEMBER 2025 AND 4 MARCH 2026

Assessors: - Mr Sibanda
Mrs Tshuma

Exception to the charge

Ms D. E Kanengoni with O. Mugari, for the state
I Ncube, for the first accused
R Ndlovu, for the second accused

NDUNA J*:* - The Two accused persons, previously in a legal practitioner–client relationship, are before the court on criminal charges. At the commencement of trial, the legal practitioner who had been representing Accused 1 failed to appear and is reported to have withdrawn his mandate.

The State alleges that both accused acted in concert to misrepresent facts to the High Court of Zimbabwe. It is alleged they falsely represented that Accused 1 had purchased a certain farm and thereafter caused the property to be registered in the name of Accused 1, when no lawful purchase had in fact occurred. In essence, the charge concerns alleged fraudulent misrepresentation to the court and unlawful registration of immovable property arising from a purportedly fictitious sale transaction.

When it became apparent that Accused 1 was unrepresented, following the withdrawal of his legal practitioner, the court halted proceedings to safeguard his right to legal representation. The court directed Accused 1 to urgently secure counsel, noting that the matter was set down for hearing and that one of the State witnesses was

travelling from South Africa at personal expense and needed to testify without further delay. Accused 1 subsequently engaged *Mr I. Ncube*, who assumed representation. Appreciation is expressed for counsel's willingness to take up the brief at short notice.

Following this development, Accused 2 proceeded to move his application.He raises an exception to the charge. An exception to a charge is enabled by *Section 171 of the Criminal Procedure & Evidence Act [Chapter 9:07]* which provides as follows: -

> *171 Exceptions*
>
> (1) When the accused excepts only and does not plead any plea, the court shall proceed to hear and determine the matter forthwith and if the exception is overruled, he shall be called upon to plead to the indictment, summons or charge.
>
> (2) When the accused pleads and excepts together, it shall be in the discretion of the court whether the plea or exception shall be first disposed of.

Before tendering his plea, Accused 2 raised an exception to the indictment. He is entitled to do so prior to pleading. The basis of the exception is that the indictment should be quashed on the ground that it is couched or calculated to embarrass him it is framed in a manner that is vague and embarrassing. He contends that the charge lacks sufficient particularity to enable him to understand the case he must meet and to plead properly.

An exception of this nature serves to protect an accused person's right to a fair trial. That right is constitutionally guaranteed under the Constitution of Zimbabwe and includes the entitlement to be informed of the charge with sufficient detail to answer it. Compliance with this standard is mandatory and not discretionary.The Constitution expressly provide the right to a fair trial in the following terms:

> 86 Limitation of rights and freedoms
> (1) ……
> (2) …….
> (3) No law may limit the following rights enshrined in this Chapter, and no person may violate them—
> (a) the
> …….
> (e) the right to a fair trial;
> (f)

This right to a fair trial is a constitutionally protected right. It is on the basis of this provision that *Section 146 (1) of the Criminal Procedure & Evince Act* provides for the essentials of a valid charge. It provides as follows: -

> "146 Essentials of indictment, summons or charge
>
> (1) Subject to this Act and except as otherwise provided in any other enactment, each count of the indictment, summons or charge shall set forth the offence with which the accused is charged in such manner, and with such particulars as to the alleged time and place of committing the offence and the person, if any, against whom and the property, if any, in respect of which the offence is alleged to have been committed, as may be reasonably sufficient to inform the accused of the nature of the charge."

Any charge which is lacking in any regard to achieve the above should not be put to the accused. The court must be on the look out to protect the accused who has been brought out to trial on a charge which lacks or is limited in its averments. In this evaluation, it would be erroneous to look at the charge alone. It must be looked at in conjunction with the state outline. (*The State vs Chin'ono HH294/2023*). In this case the accused simply looked at the charge and did not pay attention to the state outline.

The charge is as follows: -

> *"In that on the 14th day of May 2016, and at Bulawayo High Court Zephaniah Matiwaza and Blessing Dube either one or both of them with the intent to deceive the court or realising that there is a real risk or possibility that the court may be so deceived made a misrepresentation by producing or submitting a lapsed agreement of sale to Bulawayo High Court under case number HB647/16 that Zephaniah Matiwaza had paid in full the purchase price of a piece of a land known as subdivision A of Imbesu Kraal and as such Zephaniah Mutiwaza was entitled to the transfer of the said property into his name well knowing that this was false. By means of such misrepresentation, the accused persons Zephania Mitiwaza and Blessing Dube obtained an order from the High Court authorising the transfer of the land into Zephaniah Mutiwaza's name to actual prejudice of C Gouche (Private) Limited represented by Dumisani Sibanda in the sum of USD$145 000-00".*

The purpose of a charge is to inform the accused in unmistaken language what the state alleges the accused did. It was held *in Rex v Alexander & Ors 1936 AD 445* that;

> "the purpose of a charge sheet is to inform the accused in clear and unmistakable language what the charge is or what charges are which he has to meet. It must not be framed in such a way that an accused person has to guess or puzzle out

by piercing sections of the indictment or portions of Sections to gather what the real charge is on which the Crown intends to lay against him."

The charge as preferred by the State is clear and capable of withstanding criticism. It sets out what the two accused allegedly did jointly and in conjunction with each other, and clearly states the conduct giving rise to the charge. The accused are therefore required to answer to it. What Accused 2 raises amounts largely to a defence and should be dealt with during the trial.

The exception is dismissed. Both accused are directed to tender their pleas so that the trial may proceed.

National Prosecuting Authority, state's legal practitioners
Messrs. R Ndlovu and Company, 2nd accused's legal practitioners